



U.S. Department
of Transportation

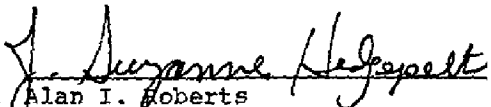
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8037 (EXTENSION)
THIRD REVISION January 30, 1987
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8037 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 28 1992

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Mauser-Werke, GmbH
Germany
(U.S. AGENT: Mauser Packaging Limited
Palm Beach Gardens, FL)

January 28, 1992



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DOT-E 8037
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1. Mauser-Werke G.m.b.H. (Mauser Packaging, Ltd.), New York, New York is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of flammable liquids and flammable solids described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes use of a non-DOT specification fiberboard drum for shipment of wet nitrocellulose, and lacquer base or lacquer chips, dry, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Mauser-Werke GmbH's (Mauser Packaging Ltd) applications dated April 23, and May 6, 1986, submitted in accordance with 49 CFR 107.103 and 107.105 and the public proceeding thereon and a supplemental letter dated December 12, 1986.

3. HAZARDOUS MATERIALS (Descriptor and class). Nitrocellulose, wet with not less than 30% alcohol or solvent, and Nitrocellulose, flakes, wet with not less than 20% alcohol or solvent, classed as flammable liquids; Nitrocellulose, wet with not less than 20% water and Lacquer base or Lacquer chips, dry, classed as flammable solids.

4. PROPER SHIPPING NAME (49 CFR 172.101). Same as in paragraph 3, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.127; 173.175; 173.184; 178.224.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is non-DOT specification fiber drums meeting one of the following:

a. Fiber drums of 110 liter or 125 liter capacity having the specifications described in the applicant's letter dated May 18, 1984, and Test Report dated June 30, 1978. Alternative packaging may use steel heads having a minimum thickness of 0.5 mm. Authorized net weight not to exceed 245 pounds.

b. Fiber drums of 100 liter or 130 liter capacity having the specifications described in the applicant's letter dated July 23, 1985 and BAM Test Report dated August 21, 1984. Authorized specific gravity of contents not to exceed 0.7 kg/L (5.85 lbs./gal.).

c. Fiber drums not exceeding 100 liter capacity, having specifications as described in the applicant's letter dated May 6, 1986, and Test Report dated March 10, 1986. Authorized net weight not to exceed 155 pounds.

Except for lacquer base and lacquer chips, dry, flammable solids, using a plasticizer that is no more volatile than dibutyl phthalate, each drum is to be fitted with an inner bag of polyethylene film having a minimum thickness of 0.1 mm, tied closed. Drums as prepared for shipment must be capable of satisfactorily withstanding the performance tests prescribed in 49 CFR 178.224-2.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. July 1, 1988.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

JAN 30 1987

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA